

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 19, Honorable Theodore C. Zayner Presiding

Maggie Castellon, Courtroom Clerk
191 North First Street, San Jose, CA95113
Telephone: 408.882.2310

To contest the ruling, call (408) 808-6856 before 4:00 P.M. or email department19@scscourt.org. Please state your case name, case number, the name of the attorney and contact number. It would also be helpful if you could identify the specific portion or portions of the tentative ruling that will be contested. Please also make sure you have notified the other side in a timely fashion that you are contesting the tentative ruling. (See R. Ct. 3.1308(a)(1); Local Rule 8.E.)

Court Reporters are not provided. Please consult our Court's website, www.scscourt.org, for the rules, policies, and required forms for appointment by stipulation of privately-retained court reporters.

- **Parties can appear either in person or remotely.** All remote appearances must be made through Microsoft Teams, unless otherwise arranged with the Court. Please go to https://www.scscourt.org/general_info/ra_teams/video_hearings_teams.shtml to find the appropriate link.
- If any party wants a Court Reporter, the appropriate form must be submitted. The Reporter can appear in person or remotely.
- Members of the public who wish to observe can do so through Microsoft Teams (using the link discussed above) or in person. Please make sure to turn your camera off and mute yourself if you are observing the proceedings remotely.
- As a reminder, state and local Court Rules prohibit recording of court proceedings without a Court order. This prohibition applies while in the courtroom and while on Microsoft Teams.

LAW AND MOTION TENTATIVE RULINGS

DATE: 3/12/25

TIME: 1:30 P.M.

PREVAILING PARTY SHALL PREPARE THE ORDER

UNLESS OTHERWISE STATED (SEE [RULE OF COURT 3.1312](#))

LINE #	CASE #	CASE TITLE	RULING
LINE 1	22CV397048	Newhouse v. Owens Corning Insulating Systems, LLC, et al. (Class Action)	See Line 1 for tentative ruling.
LINE 2	22CV398750	Rozo v. Tactical Operations Protective Services LLC, et al. (PAGA)	Continued to April 2, 2025.
LINE 3	23CV410621	Snow v. Lee's Sandwich Corporation, et al. (Class Action/PAGA)	See Line 3 for tentative ruling.
LINE 4	23CV415616	Sorillo v. Plenus, Inc. dba YAYOI (Class Action)	See Line 4 for tentative ruling.
LINE 5	19CV359055	Kaga FEI Co., Ltd. v. Cypress Semiconductor Corp.	See Line 5 for tentative ruling.
LINE 6			
LINE 7			
LINE 8			
LINE 9			
LINE 10			

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LAW AND MOTION TENTATIVE RULINGS

LINE 11			
LINE 12			
LINE 13			

Calendar Line 1

Case Name: Newhouse v. Owens Corning Insulating Systems, LLC, et al. (Class Action)
Case No.: 22CV397048

The above-entitled action comes on for hearing before the Honorable Theodore C. Zayner on March 12, 2025, at 1:30 p.m. in Department 19. The court now issues its tentative ruling as follows:

I. INTRODUCTION

This is a putative class and representative action arising from alleged wage and hour violations. On April 19, 2022, plaintiff Marcell Newhouse began this action by filing a class action complaint against defendants Owens Corning Insulating Systems, LLC, and Owens Corning Sales, LLC (collectively, “Defendants” or “Owens Corning”), asserting various causes of action based on Labor Code violations.

On June 11, 2024, plaintiffs Marcell Newhouse and Abigal Cristobal (collectively, “Plaintiffs”) filed the operative first amended class action complaint, asserting the following causes of action: (1) unpaid overtime; (2) unpaid meal period premiums; (3) unpaid rest period premiums; (4) unpaid minimum wages; (5) final wages not timely paid; (6) wages not timely paid during employment; (7) non-compliant wage statements; (8) failure to keep requisite payroll records; (9) unreimbursed business expenses; (10) violation Business and Professions Code section 17200, *et seq.*; (11) violation of Labor Code section 2698, *et seq.* (Private Attorneys General Act (“PAGA”)).

The parties have reached a settlement. Plaintiffs now move for preliminary approval of the settlement. The motion is unopposed.

II. LEGAL STANDARD FOR SETTLEMENT AGREEMENTS

A. Class Action

Generally, “questions whether a [class action] settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad